

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

FILED
STATE OF MISSISSIPPI
LAFAYETTE COUNTY

PHYLLIS MARIE CROWDER-KESTER PLAINTIFF/PETITIONER

VS

2021 SEP -9 CAUSE NUMBER: CV-2016-422W

MATTHEW OLIVER REARDON CHANCERY CLERK CO-PLAINTIFF/RESPONDENT

BY DC TJ
**CO-PLAINTIFF'S ANSWER AND COUNTER-CLAIM TO PETITION FOR MODIFICATION,
CITATION FOR CONTEMPT, AND OTHER RELIEF**

COMES NOW, your CO-PLAINTIFF/RESPONDENT, Matthew Oliver Reardon and files his answer and counter-claim to the co-plaintiff's petition as allowable under rule 81(d) and for good cause would state unto the Court the following:

1. The CO-PLAINTIFF/RESPONDENT admits the claim in paragraph 1 of Plaintiff's Petition for Modification, Citation for Contempt, and Other Relief
2. The CO-PLAINTIFF/RESPONDENT **PARTIALLY ADMITS AND PARTIALLY DENIES** the claim in paragraph 2 of Plaintiff's Petition for Modification, Citation for Contempt, and Other Relief
3. The CO-PLAINTIFF/RESPONDENT **DENIES** the claims made in paragraph 3 of Plaintiff's Petition for Modification, Citation for Contempt, and Other Relief and states that this is yet again another far reaching stunt by the Petitioner and Petitioner's legal counsel to make "blindfolded" assertions, a tactic consistent with prior proceedings involving your plaintiff in which evidence showed plaintiff's claims to be false, frivolous, and brought in bad faith the prior proceedings brought by the petitioner in which your Co-Plaintiff stayed consistent since the beginning showing the claims made by petitioner were false, frivolous, brought with ill intent, and detrimentally harmful to the minor child and the bond she has with her father.
4. The CO-PLAINTIFF/RESPONDANT **DENIES** the claims made in paragraph 4 of Plaintiff's Petition for Modification, Citation for Contempt, and Other Relief and states that he has met every obligation required of him despite petitioner continuously contumaciously violating nearly every provision and lawful requirement of each visitation order put in place by this court. Each time, Co-Plaintiff has raised grievances to this fact and the extended

time robbed of him with the minor child due to petitioner feeling she has authority to “call the shots” in refusing to honor her obligations of all signed orders of visitation based on falsified events petitioner and petitioner’s counsel came up with. Meanwhile petitioner has continued to dodge any type of deterring punishment for her contumacious actions which would go to ensuring her future compliance with orders established by this court.

5. The CO-PLAINTIFF/RESPONDANT **DENIES** the claims made in paragraph 5 of Plaintiff’s Petition for Modification, Citation for Contempt, and Other Relief, further stating this paragraph is MOOT and clearly a sham attempt by petitioner’s legal counsel to unnecessarily lengthen their petition filed by unnecessarily repeating petitioner’s same erroneous claims
6. The CO-PLAINTIFF/RESPONDANT **DENIES** the claims made in paragraph 6 of Plaintiff’s Petition for Modification, Citation for Contempt, and Other Relief and states that the key phrase in the stated clause states “IF SHE IS NO LONGER ELIGIBLE”. Respondent states that it was the sole decision of Petitioner to remove the minor child from Medicaid and further incur additional costs of privatized insurance through BlueCross BlueShield due to her spouse’s employment. Co-Plaintiff was never given any option by petitioner and states that the minor child would in fact have been eligible for Medicaid the entire time based upon the combined income of petitioner and co-plaintiff/respondent. Co-Plaintiff/Respondent would note that the determination of Medicaid Coverage is made based on the income of the natural parents of the minor child and NOT the petitioner and her spouse’s income as petitioner seems to remain confused about. Co-Plaintiff attempted to explain this to petitioner at no avail. Therefore, due to petitioner taking it on herself to remove the minor child from Medicaid, the additional incurred costs of privatized insurance are costs to be borne by the petitioner. Co-Plaintiff would further request that petitioner produce a letter of denial from Medicaid with any reason for denial listed as well as what income was reported by the petitioner if in fact a letter of denial was issued.
7. The CO-PLAINTIFF/RESPONDANT **DENIES** the claims made in paragraph 7 of Plaintiff’s Petition for Modification, Citation for Contempt, and Other Relief, further stating this paragraph is MOOT and clearly a sham attempt by petitioner’s legal counsel to unnecessarily lengthen their petition filed by unnecessarily repeating petitioner’s same erroneous claims

8. The CO-PLAINTIFF/RESPONDANT **DENIES** the claims made in paragraph 8 of Plaintiff's Petition for Modification, Citation for Contempt, and Other Relief, further stating that the petitioner has had an obligation under that rule along with the JOINT LEGAL CUSTODY which co-plaintiff/respondent by order is supposed to share, which naturally would involve communicating and providing proof of any extra-curricular activities the minor child had interest in participating in. Co-Plaintiff/Respondent states that there has been no mention of the such, and primarily due to petitioner going on hiatus for the majority of the time court orders have been in place, further blocking not only communication about the minor child, but blocking all communication and visitation between the minor child and her father despite co-plaintiff/respondent meeting all obligations of his child support each and every month. In addition, Respondent would show unto the court that the Petitioner is barred from bringing such claims by the doctrine of clean hands as the Petitioner has willfully, repeatedly, maliciously, and contumaciously violated the terms of the Child Custody, Visitation, and Child Support Agreement that she entered into with the Co-Plaintiff/Respondent
9. The CO-PLAINTIFF/RESPONDANT **DENIES** the claims made in paragraph 9 of Plaintiff's Petition for Modification, Citation for Contempt, and Other Relief and would show unto the court that the Petitioner is barred from bringing such claims by the doctrine of clean hands as the Petitioner has willfully, repeatedly, maliciously, and contumaciously violated the terms of the Child Custody, Visitation, and Child Support Agreement that she entered into with the Co-Plaintiff/Respondent
10. The CO-PLAINTIFF/RESPONDENT **DENIES** That the PLAINTIFF should be awarded any attorney's fees for her attorney because the DEFENDANT is, indeed, not in willful or deliberate violation of the prior judgment or decree pursuant to *Dunaway v. Busbin*, 498 So.2d 1218, 1222 (Miss. 1986) {emphasis added}; *Newell v. Hinton*, 556 So.2d 1037, 1044 (Miss. 1990), and that the Petitioner is in fact in direct violation of the Clean Hands Doctrine. Furthermore, Respondent requests that pursuant to *Newell v. Hinton*, 556 So.2d 103 7, I 043 (Miss. 1990) and *Stauffer v. Stauffer*, 379 So.2d 922, 924 (Miss 1980), it is proper for the Respondent to be awarded a nominal monetary amount as legal fees for having to defend against such claims amidst other time consuming legal matters involving among others, a currently ongoing appeal in the Mississippi Court of Appeals which

petitioner and petitioner's counsel have an interest in derailing and are currently attempting to derail through the intentional deprivation of respondent's minor child as well as the frivolous bringing of this petition to interfere with the ongoing legal matters.

NOW, having answered the Plaintiff's petition, Co-Plaintiff/Respondent Matthew Oliver Reardon, brings forth his counter-claim

11. That Plaintiff wishes to quash the withholding order and immediately suspend all child support money to be paid out to Defendant. Plaintiff understands his financial obligation to his child, however, the dangers of an individual continuing to go in contempt of a visitation order set forth by this court has progressed considerably past any type of warning from this court the defendants counsel will likely argue for. By now when assessing the frequency of Plaintiff's fictitious statements, continued contumacious acts against a visitation order, and the continued victimization of respondent in ways that are criminal and in violation of state and federal law, this honorable court has an obligation to issue a deterring and fitting punishment in order to curve plaintiff from her contumacious ways. Plaintiff lost the entire year of 2020 (12+ months) of not seeing his minor child due to the defendant's lies and that is time no matter what he can't get back. To date he has lost the majority of agreed upon time with his minor child in 2021 to include ALL summer vacation and Fathers Day. It's these reasons that Plaintiff feels as an abrupt temporary end to child support paid out to defendant is warranted as this destructive behavior must be curbed and it shouldn't be at the further victimization of the plaintiff by the defendant in this cause
12. Co-Plaintiff/Respondent formally requests that this honorable court re-open the Department of Child Protective Services Records which were turned over to this court during the last proceedings and address them as to the petitioner's fictitious claims from the last proceedings in which she knowingly claimed under penalty of perjury (among other things) that DCPS had advised her to cease visitation. Co-Plaintiff would show this as the matter was agreed upon to be closed out pending adherence to the signed order by this court. On or before June 5, 2021, petitioner withheld all visitation regarding the minor child and has ever since including communication. As such, the agreed upon order became nullified by the petitioner due to her contumacious actions of withholding the minor child from her father, and as such justify the reopening of the DCPS records for assessment and perjury proceedings

13. That the PLAINTIFF be found in willful and contumacious Civil and Criminal contempt by this Court in order to help curb the intentional victimization of Respondent by Petitioner/Plaintiff and her legal counsel

WHEREFORE ALL PREMISES CONSIDERED

This honorable court should have an OBLIGATION to send a deterring, punishing message to the PLAINTIFF along with PLAINTIFF'S legal counsel whom have either assisted the Plaintiff in the execution of her manipulation stunts continuously waging an undeserved legal war on Respondent to stack overburden and stresses with the end goal of permanently ridding a caring father from his daughter's life. If PLAINTIFF'S legal counsel did not assist in the execution of these stunts, at the bare minimum Plaintiff's legal counsel neglected their own ethical obligations all attorneys must maintain. To help curb future instances such as this or much worse as Respondent has suffered from for 4-years at the hands of the Plaintiff. plaintiff moves for this court to issue sanctions as allowable under MRCP 11. Co-Plaintiff/Respondent prays upon this court the following:

- A. That the PLAINTIFF be found in willful and contumacious Civil and Criminal contempt by this Court;
- B. That the PLAINTIFF be ordered to immediately purge herself of contempt
- C. That the PLAINTIFF be ordered to share JOINT PHYSICAL CUSTODY to match the LEGAL CUSTODY currently shared
- D. That if JOINT PHYSICAL CUSTODY is not granted that CO-PLAINTIFF/RESPONDENT be allowed to make up the extended time with the minor child which was robbed from him due to the malice hands of the Petitioner/Plaintiff
- E. That the previous Order of the Court be modified to restrict the PLAINTIFF's interference in the DEFENDANT's parenting of the minor child and to provide that should the PLAINTIFF continue to interfere with the RESPONDENT'S rights and continue to deprive the minor child of her father, the PLAINTIFF shall forfeit any unrestricted or

unsupervised visitations which the Court might find fit to grant the PLAINTIFF upon modification of the custody Order.

F. That the PLAINTIFF be denied any award of attorney's fees for her attorney of record because the RESPONDENT is, indeed, not in willful or deliberate violation of the prior judgment or decree due to PLAINTIFF bringing this action with unclean hands by willful or deliberate violation of the prior judgement or decree

G. That the RESPONDENT be awarded \$40,000 accounting for the costs and time lost, injuries inflicted on Respondent's marriage and family life and mental anguish both present and future bestowed upon Respondent at the malice hands of the PLAINTIFF

Co-Plaintiff/Respondent respectfully moves that all costs of this court be taxed to Phyllis Crowder-Kester and prays for any other relief in which he may be entitled to receive, both special or general

Respectfully Submitted this 9th day of September, 2021



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